

Crag College Guides LLC

(d/b/a "Crag College")

MINOR PARTICIPATION PACKET

**ASSUMPTION OF RISK (MINOR), PARENT/GUARDIAN CONSENT, MEDICAL CONSENT,
PARENT/GUARDIAN RELEASE OF OWN CLAIMS, AND LIMITED INDEMNITY
READ CAREFULLY – THIS AFFECTS LEGAL RIGHTS
THIS DOCUMENT DOES NOT RELEASE THE MINOR’S CLAIMS.**

Host: Crag College Guides LLC ("Host")

Registered Address: 212 N. 2nd Street, Suite 100, Richmond, KY 40475, United States

Operating Region: Red River Gorge, Kentucky (including Powell, Wolfe, Menifee, and Lee Counties, and adjacent areas)

Minor Name (print):

DOB:

Parent/Legal Guardian Name (print):

Parent/Guardian Phone

Parent/Guardian Email:

1) Activities and Where This Applies

All Host activities: top-rope climbing; single-pitch sport and traditional climbing; anchor-building instruction; mock leading; rappelling; approach/egress hikes; staging/waiting; related site movement ("Activities").

No multi-pitch guiding is offered.

Applies while participating, observing, or spectating; on trails, staging areas, bathrooms, parking areas; and while walking between vehicles and climbing sites.

Effective on the date signed and for all future dates the Minor participates with the Host, unless revoked in writing by the Parent/Guardian.

2) Risks We Understand

Climbing has **inherent risks** that cannot be removed, including: falls; falling rock/gear; contact with objects; rope wear; anchor/protection failure; belay or instruction errors; wildlife, insects, terrain, weather; delayed rescue in remote settings; acts or omissions of guides or other participants. These risks can cause serious injury, paralysis, or death.

3) Minor's Assumption of Risk

I want to participate. I understand the risks above and **accept those risks**. I will listen to my guides, use required equipment, and tell staff if I feel unsafe or unwell.

4) Parent/Guardian Consent to Participate

I am the Minor's legal parent/guardian. I **consent** to the Minor's participation in the Activities. I understand and accept the inherent risks on the Minor's behalf.

5) Responsibilities and Safety Rules

Report all injuries (even minor) to staff.

Wear and use required PPE as instructed.

Disclose any substance/condition that could impair safety.

Stop and notify staff if unusual symptoms occur (faintness, chest pain, shortness of breath, high anxiety).

Follow all rules and guide instructions.

- The Minor will use equipment approved/inspected by the Host.
- The Minor will not participate if impaired by drugs, alcohol, fatigue, or medical condition.
- A guide may stop or remove the Minor from Activities for safety, without refund.

6) Medical Disclosure and Emergency Care

The Minor is physically and mentally fit for the Activities. I have disclosed relevant medical conditions, allergies, and medications.

I **consent** to on-site first aid **within Wilderness First Responder (WFR) training**, including, if indicated, administration of **epinephrine**, and I authorize the Host to seek emergency care in good faith. I accept financial responsibility for any care/transport.

7) Property, Data, and Media

- The Host is not responsible for loss, theft, or damage to personal property (including items in vehicles or at staging areas).
 - The Host may collect limited personal/health information for safety, logistics, emergency, or insurance purposes, store it with reasonable security, and disclose it only as required by law or for emergency/insurance needs.
 - I grant the Host a perpetual, worldwide, royalty-free license to use photographs, video, or audio of the Minor's participation for educational, training, or promotional purposes, without compensation.
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8) Important Legal Terms

No Release of Minor's Claims. This Packet **does not** release or waive the Minor's personal injury claims.

Parent/Guardian's Own Claims. I **release and covenant not to sue** the Host and its owners, officers, instructors, contractors, employees, agents, volunteers, affiliates, event hosts, and landowners/managers (including the U.S. Forest Service – Daniel Boone National Forest, Muir Valley Nature Preserve, and private landowners) (collectively, "Releasees") for **my own** claims arising from the Minor's participation (e.g., my claims for loss of services or expenses I pay), **to the extent permitted by law and excluding any gross negligence, willful or wanton misconduct, or intentional acts** of a Releasee.

Limited Indemnity (Third-Party Claims). I agree to **indemnify, defend, and hold harmless** the Releasees from third-party claims and expenses (including reasonable attorneys' fees) **to the extent caused by the Minor's or my acts or omissions** (e.g., property damage the Minor causes), but **this does not** require me to indemnify any Releasee for that Releasee's **gross negligence, willful or wanton misconduct, or intentional acts**.

Conspicuous Notice. THIS PACKET DOES NOT ELIMINATE CLAIMS FOR GROSS NEGLIGENCE, WILLFUL OR WANTON MISCONDUCT, OR INTENTIONAL ACTS.

9) Digital Execution; Law; Venue; Third-Party Beneficiaries; Severability

Digital Execution. We agree to electronic signatures and electronic delivery; e-signatures have the same effect as handwritten signatures.

Law/Venue. Kentucky law governs. Exclusive venue lies in a court of competent jurisdiction in

Powell, Wolfe, Menifee, or Lee County, Kentucky, or, if venue cannot reasonably be determined by place of incident, in Madison County, Kentucky.

Third-Party Beneficiaries. Landowners and land managers listed here are intended third-party beneficiaries.

Severability / Blue-Pencil. If any provision is invalid or unenforceable, it shall be **reformed** to the maximum extent allowed to effect the parties' intent; the rest remains in force.

Entire Agreement. This Packet is the full agreement on these subjects and supersedes prior understandings.

Signatures

Minor (if capable): I have read (or had read to me) Sections 2–3 and understand the risks.

Minor Signature:

Date:

Parent/Guardian: I have read this entire Packet and agree to all terms.

Parent/Guardian Signature:

Date:

Printed Name:

Relationship to Minor:

Emergency Contact (name/phone):

If participating through a club/school (name):